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Bills of 2023 | 'Skittles bill' amended to spare Skittles from chemical ban

December 29, 2023 | Signal, The (Santa Clarita, CA)
Author: Signal Contributor | Section: Business | 458 Words
OpenURL Link

Editor's note: As 2023 draws to a close, The Signal is presenting CalMatters' wrap-up stories on some of the key bills that reached the governor's desk at the close of the 2023 legislative session. Here's the CalMatters summary of a bill designed to improve food safety.

By Shreya Agrawal

CalMatters Writer

This proposal captured headlines as the "Skittles bill" because it would have banned the use of titanium dioxide, which is used as a white dye in the popular fruit-flavored candies.

Assembly Bill 418, authored by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, has been amended to remove that particular food chemical from the measure, so it no longer applies to Skittles.

But, it still prohibits the use of several other chemicals that are common in foods such as candies, baked goods and carbonated drinks: brominated vegetable oil, potassium bromate, propylparaben, and red dye 3.

Under the bill, all food products for human consumption that contain these substances will be banned starting Jan. 1, 2027. Any person who manufactures, stores, distributes, delivers, or sells any food products with these substances could be fined as much as $5,000 for the first offense and up to $10,000 for every subsequent offense.

Who Supports It

The bill was co-sponsored by the Environmental Working Group and Consumer Reports, who aim to improve food safety in California. Several health advocacy groups and environmental organizations also support this bill, including many cancer advocacy groups, since two of the banned substances are found to be carcinogenic.

In a last-ditch push for a food safety bill, former Gov. Arnold Schwarzenegger and actor Morgan Freeman were among celebrities in an ad campaign.

Who Is Opposed

The American Chemistry Council opposed earlier versions of the bill that included titanium dioxide, calling the ban "an overly broad and unnecessary burden on consumers, manufacturers and regulators."

With the amendments, it changed its position to neutral, as did the California Chamber of Commerce and the Dairy Institute of California.

Why It Matters

The chemicals this first-in-the-nation bill bans are present in several popular food brands and have already been banned from food in the European Union, because they have been shown to be detrimental to human health by several scientific studies.

Potassium bromate and red dye 3 are carcinogenic while the others have been shown to cause harm to the endocrine, reproductive and nervous systems.

Due to concerns about cancer, red dye 3 was banned from cosmetics by the Food and Drug Administration, but it is still used in food.

The Governor's Call

Gov. Gavin Newsom announced Oct. 7 he signed the bill. In a signing message, he noted that companies will have until 2027 to comply and said there had been many "misconceptions" about the measure.

The post Bills of 2023 | 'Skittles bill' amended to spare Skittles from chemical ban appeared first on Santa Clarita Valley Signal.

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- **Citation (apa Style)**
  Contributor, S. (2023, December 29). Bills of 2023 | 'Skittles bill' amended to spare Skittles from chemical ban*Signal, The (Santa Clarita, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19639BF3AC9B4020.